Migration, identity formation and political movements have played a pivotal role in transforming the idea of citizenship in India.[56] The Indian Citizenship Act was first formulated in 1955, a good eight years after Independence because Partition-related migration flows delayed and complicated the deliberations. Citizenship was premised on the principle of jus solis, or citizenship by birth, and the Republic Day on 26 January 1950 was chosen as the baseline. Those who were born in India after that date were citizens of India, with minor exceptions. Naturalization was also permissible after a specified duration of stay in India. The most famous naturalized citizen of independent India, Sonia Gandhi, was born in Italy and faced tremendous political agitation over her 'foreignness' in the 1990s, which persisted even after she became the president of the Indian National Congress in 1998.

The first amendment to the Citizenship Act came in 1986 to provide special provisions for the state of Assam, including new cut-off dates to legitimize or delegitimize Bangladeshi migrants. The second amendment to the Act came in 2003 to define Overseas Indian Citizen (OCIs), indicating a shift to the jus sanguinis principle of citizenship by blood ties. In the initial discussions, OCIs were restricted to the countries of the richer world, but later it was widened to more countries, albeit with a cut-off date of emigration. Such cut-offs are now routine even for domestic citizenship clauses that permit access to state-domiciled services or for that matter urban citizenship clauses that 'regularize' slum-dwellers occupying public land only if they can show documents that prove that they moved to the city before a specified date. Migration from rural to urban areas and across state and national borders have and will continue to redefine the meaning of citizenship in India, one cut-off date at a time.

Migration in the 21st Century

The past two decades have witnessed a surge in internal and international mobility in India and attracted attention from various stakeholders. The 2001 government report on the Indian diaspora has led to several important